Date:- 14/04/2025

To,

The Maharashtra Real Estate Regulatory Authority,

6th & 7th Floor, Housefin Bhavan,

Plot No. C - 21, E - Block, Bandra Kurla Complex,

Bandra (E), Mumbai 400051

Subject – Non Negotiable Clauses as mentioned in Agreement for Sale.

Sir,

We have mentioned Non Negotiable clauses at the following places in the draft for "Agreement for Sale" submitted for the project "**Kaleidoscope R5 Misty greens Phase 3B**"

Clause No	Page No.	Clause
4. – Force Majeure	26	*Provided that the Owner/Promoter shall be entitled to reasonable extension of time as agreed by and between the Purchaser/Allottee/s and the Owner/Promoter for giving possession of the Plot on the aforesaid date, and the same shall not include the period of extension given by the Authority for registration. Further if the completion of project in which the Plot is to be situated is delayed on account of –* *(i) war, civil commotion or act of God.* *(ii) any notice, order, rule, notification of the Government and/or other public or competent authority/court.*
6.1 Land Conveyance	31	6.1 The Owner/Promoter, on receipt of entire amount of the Price of the said Plot under the Agreement from the Purchaser(s)/Allottee(s), shall execute a conveyance deed of the said "Kaleidoscope R5 -Misty Greens - phase 3- B" of the Project (subject to his right to dispose of the remaining unsold Plot/s, if any) upon said Project land within 3 months from the date of Completion of the said Project. However, in case the Purchaser(s)/Allottee(s) fails to deposit the stamp duty, registration charges and all other incidental and legal expenses, outstanding maintenance amount if any etc. so demanded within the period mentioned in the demand letter, the Purchaser(s)/Allottee(s) authorizes the Owner/Promoter to withhold registration of the conveyance deed in his/her/their favour till full and final settlement of all dues and stamp duty and registration charges to the Owner/Promoter is made by the Purchaser(s)/Allottee(s) absolute and unconditional consent to this scheme of development and conveyance.
Structure Conveyance	Not Applicable	This Project is plotting project and therefore "Structure Conveyance" Clause is not applicable.
Defect Liability Period	Not Applicable	This Project is plotting project and therefore "Defect Liability Clause" Clause is not applicable.

Variation Clause	Not Applicable	This Project is plotting project and therefore "Variation Clause" is not applicable.
21 – Termination Clause	58	*21.1. Without prejudice to the right of Owner/Promoter to charge interest in terms of above mentioned clause, on the Purchaser/Allottee/s committing default in payment on due date of any amount due and payable by the Purchaser/Allottee/s to the Owner/ Promoter under this Agreement (including his/her proportionate share of taxes levied by concerned local authority and other outgoings) and on the Purchaser/Allottee/s committing three defaults of payment of installments, the Owner/Promoter shall at his own option, may terminate this Agreement:* *21.1.1 Provided that, Owner/Promoter shall give notice of fifteen days in writing to the Purchaser/Allottee/s, by Registered Post AD at the address provided by the Purchaser/Allottee/s and/or mail at the e-mail address provided by the Purchaser/Allottee/s, of his intention to terminate this Agreement and of the specific breach or breaches of terms and conditions in respect of which it is intended to terminate the Agreement. If the Purchaser/Allottee/s fails to rectify the breach or breaches mentioned by the Owner/Promoter within the period of notice then at the end of such notice period, Owner/Promoter shall be entitled to terminate this Agreement.* *21.1.2 Provided further that upon termination of this Agreement as aforesaid, the Owner/ Promoter shall refund the amount till then received from the Purchaser/Allottee/s without any interest thereon within a period of 30 days*
Parking Clause	Not Applicable	This Project is plotting project and therefore "Parking Clause" is not applicable.
3.1 Bank Account Clause	23	3.1. The said Consideration shall be paid by the Purchaser to the Owner/Promoter as per the Payment Schedule given in the ANNEXURE 'L', only by duly drawn cheques/demand drafts in the name of "Kaleidoscope Developers Private Limited, Escrow A/c No. ----------IFSC code HDFC---------- and, HDFC Bank Ltd., branch ---------- or by RTGS at any other place as intimated by the Owner/Promoter.
10.1.3 Agent Clause	47	10.1.3 In case the transaction being executed by this agreement between the promoter and the allottee is facilitated by a Registered Real Estate Agent, all amounts (including taxes) agreed as payable remuneration / fees/charges for services/commission/brokerage to the said Registered Real Estate Agent, shall be paid by the Promoter/ allottee/both, as the case may be, in accordance with the agreed terms of payment"
Annexure I	71	As per the order number 57/2024 dated 30/07/2024 "Annexure I" of the agreement for sale detailing facilities/amenities to be provide by the promoter.

For **KALEIDOSCOPE DEVELOPERS PRIVATE LIMITED**

Kaleidoscope Developers Private Limited

Director